

**IN THE COUNTY COURT IN AND FOR PASCO COUNTY, FLORIDA
CIVIL DIVISION 6-B**

SWEET LIVING, INC.,

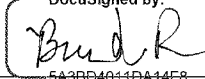
Plaintiff,

vs.

CASE NO.: 26-CC-001256

BRANDI RODGERS,

Defendant.

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**DEFENDANT'S MOTION TO QUASH SERVICE OF PROCESS PURSUANT TO FLA.
R. CIV. P. 1.140(b)(5) AND FLA. STAT. § 48.031**

COMES NOW Defendant, BRANDI RODGERS, appearing pro se and specially for the limited purpose of contesting personal jurisdiction and service of process, and pursuant to Florida Rule of Civil Procedure 1.140(b)(5) and Florida Statute § 48.031, respectfully moves this Honorable Court to QUASH the purported substitute service of process effected on May 14, 2026, and as grounds therefor states:

I. PROCEDURAL FACTS, AS REFLECTED IN PLAINTIFF'S OWN RETURN OF SERVICE

1. Plaintiff filed the Complaint for Eviction (Mobile Home Park Eviction — Non-Payment of Rent) on February 18, 2026. (Filing # 242037660.)
2. On March 12, 2026, Plaintiff filed a Motion for Judicial Default and Motion for Final Judgment of Possession (the "Default Motion").
3. On April 1, 2026, Plaintiff voluntarily withdrew the Default Motion (Filing # 245113375, DIN 15).
4. Despite the withdrawal, Plaintiff thereafter filed three separate Notices of Hearing on the very same withdrawn Default Motion on April 24, April 29, and April 30, 2026 (DINs 16, 18, 19, and 20).
5. On May 4, 2026 — nearly three months after the Complaint was filed — Plaintiff for the first time engaged a process server (Dennis R. Fox, APS14744) to attempt to serve Defendant.
6. Service attempts were made on May 11, 2026 and May 12, 2026 at Defendant's home (13721 94th Avenue, Seminole, FL 33776). No one answered the door on either attempt.
7. On May 12, 2026 — between the two failed service attempts — Plaintiff filed a Notice of Cancellation of the May 21, 2026 hearing (Filing # 247999005, DIN 21).
8. On May 14, 2026 at approximately 10:56 a.m., the process server effected purported substitute service. Plaintiff's Return of Service, filed May 19, 2026 (Filing # 248533065, DIN 23), states:

"SUBSTITUTE served by delivering a true copy of the Eviction Summons/Residential, Complaint for Eviction Mobile Home Park Eviction (Non-Payment of Rent), Exhibit A (5-Day Notice), USPS Certified Mail Receipt and Civil Cover Sheet ... to: Scott Rogers as Son at the address of: 13721 94th Ave., Seminole, FL. 33776, the within named person's usual place of abode, who resides therein, who is fifteen (15) years of age or older and informed said person of the contents therein ..."

9. The process server's own narrative further records that Scott Rogers "insisted on talking through the closed storm door" and "[d]enied that his mother was present, even though her CRV was in the driveway."

II. THE STATUTORY STANDARD FOR SUBSTITUTE SERVICE

Florida Statute § 48.031(1)(a) provides that service of original process may be made by substitute service:

"by leaving the copies at his or her usual place of abode with any person residing therein who is 15 years of age or older and informing the person of their contents."

Substitute service is in derogation of the common law and statutes authorizing it must be strictly construed. The plaintiff bears the burden of strict compliance. The return of service must affirmatively show each statutory predicate. If the return fails to show strict compliance, the service is invalid and must be quashed.

III. THE RETURN OF SERVICE FAILS TO ESTABLISH STRICT COMPLIANCE

A. The Return does not establish that Scott Rogers resides at Defendant's usual place of abode.

The Return alleges only that the address (13721 94th Avenue, Seminole, FL 33776) is "the within named person's [Brandi Rodgers'] usual place of abode" and that the substituted recipient "resides therein." The Return contains no factual statement of how the process server verified Scott Rogers' residency. The Return does not allege independent investigation, inquiry of Scott himself as to residency, mail delivered to Scott at the address, driver's-license verification, or any other indicia of residency. Without such facts, the strict-compliance standard of § 48.031(1)(a) cannot be met, because residency of the substituted recipient is itself a statutory element — not a matter the process server may presume.

B. The Return does not establish that the substituted recipient was "informed of the contents" of the papers.

Section 48.031(1)(a) requires that the substituted recipient be "inform[ed] ... of their contents." Florida courts have construed this requirement to mean an actual communication of the substance of the papers — not mere placement of the papers at the door. The Return states that Scott "insisted on talking through the closed storm door," indicating the papers and the person were separated by a closed door at the time of "service." The Return does not state that the papers were placed in Scott's hand, that Scott opened the storm door, or that the process server orally explained the substance of the papers in a manner Scott could have heard or

comprehended through the closed door. The "informing" prong of § 48.031(1)(a) is therefore not satisfied on the face of the Return.

C. Two failed knock attempts do not justify substitute service on a competent adult.

Section 48.031(1)(a) does not require diligent effort to find the named defendant before substitute service may be made; substitute service is independently authorized when the recipient meets all of the statutory predicates. But where, as here, the process server's own records show only two failed attempts to find Brandi Rodgers (May 11 at 5:30 p.m. and May 12 at 5:45 p.m., both during dinner hours), and where the recipient demonstrably did not know whether Brandi was at home (Scott "[d]enied that his mother was present, even though her CRV was in the driveway"), the Court should view the entire substitute-service event with caution. The clear inference is that the process server, after two unsuccessful evening attempts, sought to close the file by handing the papers to whomever answered the door rather than by perfecting personal service on Brandi Rodgers.

IV. THE CONSEQUENCE OF DEFECTIVE SERVICE

Service of process that fails to comply strictly with § 48.031 confers no personal jurisdiction over the defendant. Any default, judgment, or order entered against a defendant who has not been validly served is void and subject to vacatur. The proper remedy at this stage is to quash the service so that Plaintiff, if it elects to continue, must effect valid service of process before any further default mechanism is triggered. Defendant has appeared specially for this purpose only and has not waived any defense by filing this Motion. See Fla. R. Civ. P. 1.140(b)(5) (lack of jurisdiction over the person is a defense "made by motion at the option of the pleader" and is preserved if asserted by motion before any responsive pleading).

V. RESERVATION OF DEFENSES; SPECIAL APPEARANCE

Defendant expressly reserves all defenses under Fla. R. Civ. P. 1.140(b), including but not limited to insufficiency of process (Rule 1.140(b)(4)) and insufficiency of service of process (Rule 1.140(b)(5)). This Motion is a special appearance for the limited purpose of contesting service. Defendant does not consent to personal jurisdiction; does not waive insufficient service; and does not waive any other defense available under the Florida Rules of Civil Procedure or the Florida Statutes.

VI. PRAYER FOR RELIEF

WHEREFORE, Defendant respectfully requests that this Honorable Court:

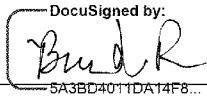
10. ENTER an Order QUASHING the purported substitute service of process effected on May 14, 2026, as reflected in the Return of Service filed by Plaintiff on May 19, 2026 (Filing # 248533065, DIN 23);
11. SET ASIDE any default, default judgment, or order entered against Defendant prior to the date of valid service of process;
12. REQUIRE Plaintiff, if it wishes to continue this action, to effect valid service of process upon Defendant before any default mechanism or registry-deposit requirement may attach;

13. Without waiving the foregoing, GRANT Defendant leave to file the responsive pleadings and motions she has filed contemporaneously herewith, the time for filing to be tolled from May 14, 2026 until ruling on this Motion; and
14. GRANT such further relief as the Court deems just and proper.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on May 21, 2026, a true and correct copy of the foregoing was furnished by ☐ U.S. Mail, ☐ email, ☐ hand delivery to: Keith William Wynne, Esq., counsel for Plaintiff, at Keith@KeithWillWynne.com, Pleadings@KeithWillWynne.com, and Marcela@KeithWillWynne.com, and at 1001 East Baker Street, Suite 101, Plant City, FL 33563.

Respectfully submitted (under special appearance),

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BRANDI RODGERS, Defendant pro se

13721 94th Avenue

Seminole, FL 33776

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